CHAPTER 71 Delimitation Commission of India

The word 'delimitation' literally means the act or process of fixing limits or boundaries of territorial constituencies in a country or a Province having a legislative body. The job of delimitation is assigned to a high-powered body. Such a body is known as Delimitation Commission or a Boundary Commission[1].

Rationale Of Delimitation

Periodic delimitation and elections constitute the pillars of the Indian parliamentary democracy. The following points clearly bring out the importance of delimitation:

1. Free and fair elections are the hallmark of a truly democratic state. What makes a parliamentary democracy the preferred system of governance is that it allows people to choose their representatives by using the electoral process. Elections are integral to the parliamentary democracy and therefore delimitation of constituencies assumes great importance. Delimitation exercise conducted following the legal provisions and accepted norms secures to the people fair elections. Periodic drawing of electoral boundaries which is what the delimitation process does is therefore a legally mandated exercise in a representative system where single member constituencies are used for electing political representatives[2].

2. Delimitation is a complex matter and needs to be approached sensitively as this provides foundation to democratic exercise of public representations through elections in modern times. Theoretically, delimitation is a stepping stone for creation of a body polity to govern the affairs of public at large through territorial concept of elected representation. It is imperative that such exercises are taken on periodic intervals to reflect the changing ground realities[3].

3. The principle of one man, one vote envisages that there should be parity in the value of votes of electors. Such a parity though ideal for a representative democracy is difficult to achieve. There is some departure in every system following this democratic path. In the matter of delimitation of constituencies, it often happens that the population of the one constituency differs from that of the other constituency. As a result, although both the constituencies elect one member, the value of the vote of the elector in the constituency having lesser population is more than the value of the vote of the elector of the constituency having a larger population[4].

Commissions Established So Far

The Delimitation Commission of India is a statutory (and not a constitutional) body. It is established by the Central Government under the provisions of a law enacted by the Parliament. Its function is to demarcate the boundaries of the Parliamentary and Assembly Constituencies in the country.

The Commission is a powerful body. Its orders have the force of law and cannot be challenged in any court. The orders come into force on a date specified by the President of India. They are laid before the Lok Sabha and the State Legislative Assembly concerned. But, modifications are not permissible therein by them.

So far, four such Commissions have been constituted. The names of these Commissions, the year in which they were established and the name of the Act under which they were established are mentioned in Table 71.1.